

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

HAPAG-LLOYD, A.G. AND HAPAG-LLOYD (AMERICA) LLC –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-09

Served: February 9, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

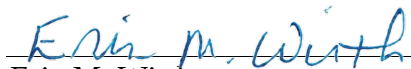
ORDER DENYING REQUEST FOR ORAL HEARING

As required by the scheduling order, on February 4, 2022, the parties filed their third joint status report addressing whether an oral hearing is needed (“JSR 3”). The Bureau of Enforcement (“BOE”) “does not oppose an oral hearing and leaves the necessity of such a hearing with the discretion of the court.” JSR 3 at 1. If an oral hearing is held, BOE would likely call no more than eight witnesses. JSR 3 at 2.

Respondents “presently believe an oral hearing will be helpful” although their position could change. JSR 3 at 1. Respondents contend that oral testimony may be helpful as different entities interpret certain documents differently and the undersigned may need to “choose between differing interpretations of such documents.” JSR 3 at 1-2. Respondents anticipate calling two to three witnesses. JSR 3 at 2. The parties propose March 1-2, 2022, for a hearing as it would allow both parties time to prepare their briefs. JSR 3 at 1.

Commission hearings are usually held by means of written testimony and documentary evidence in the form of briefs and proposed findings of fact. Avoidance of Trial-Type Oral Hearings, Informal Statement of Policy, 17 S.R.R. 457 (FMC Mar. 23, 1977). If oral hearings are held, additional time is typically required to review transcripts and file briefs and proposed findings of fact after the oral testimony. *See, e.g.*, Docket No. 10-06.

The parties’ thoughtful discussion of the issue is appreciated. Respondents assert that an oral hearing may be helpful in interpreting documents. However, it does not appear that the factual determinations necessary in this proceeding differ significantly from typical Commission proceedings. The parties also recognize that this is an expedited proceeding, with very tight timeframes. The ambitious schedule proposed by the parties would be challenging, given the time necessary for witnesses to review their testimony and transcripts to be finalized. The undersigned would prefer that the parties focus their limited time on developing their arguments and discussing an amicable resolution of this proceeding. An oral hearing may create delays, and there appears to be no need to deviate from typical Commission hearing procedures. Accordingly, it is hereby **ORDERED** that the request for an oral hearing be **DENIED**.


Erin M. Wirth
Chief Administrative Law Judge